

Jai Dev Tivari v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 18 October 2023 · 2023:AHC:201893-DB · Writ - C No. 32407 of 2023 · **Writ disposed; Clause 6.14 application to be decided; recovery stayed**

HEADNOTE

Writ against a recovery certificate for Rs. 1,15,600 disposed of without examination of the merits. The consumer, ready to pay the sum in instalments, is to apply under clause 6.14 of the U.P. Electricity Supply Code, 2005 within one week; the Electricity Department is to decide that application within one month. Recovery is stayed for one month or until instalment payment starts, whichever is earlier.

FACTUAL SUMMARY

Jai Dev Tivari filed a writ petition before the Allahabad High Court challenging a recovery certificate that demanded Rs. 1,15,600 from him. His counsel told the Court that he was ready and willing to pay the entire amount in instalments. Counsel appearing for the Electricity Department stated that if Tivari applied under Clause 6.14 of the U.P. Electricity Supply Code, 2005, and prayed for instalments to be fixed, the Department would fix them.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Instalments on a recovery demand

HOLDING

Where the consumer, faced with a recovery certificate for Rs. 1,15,600, states that he is ready to pay the entire amount in instalments, and the licensee's counsel states that instalments will be fixed if he applies under Clause 6.14 of the U.P. Electricity Supply Code, 2005, the High Court, without going into the merits, directs that an application made under that clause within one week be decided within one month, and that no recovery be made for one month or until instalment payment starts, whichever is earlier. The writ is disposed of on those observations. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court treated Clause 6.14 as the route for fixing instalments on the recovery demand, directed a decision on an application filed within one week, and stayed recovery until instalments started or for one month, whichever was earlier. ¶ 1

clause-6.14-instalments-on-accepted-dues The consumer offered to pay the entire Rs. 1,15,600 and sought only instalments. The Court did not examine the recovery and left instalment fixation to a Clause 6.14 application. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — SUSTAINABILITY OF THE RECOVERY CERTIFICATE FOR RS. 1,15,600

The Court expressly declined to go into the merits of the demand. ¶ 1

NOT DECIDED — NUMBER AND TERMS OF THE INSTALMENTS

Fixation was left to the Electricity Department on a Clause 6.14 application. ¶ 1

